5000050 Pages: 1 of 11
12/13/2024 01:54 PM R Fee:$63.00
Carly Koppes, Clerk and Recorder, Weld County , CO

After Recordation Return to:
PREMIER COMMUNITY DEVELOPMENTS, LTD.
1635 East Layton Drive
Englewood, Colorado 80113-7000

DECLARATION OF ACCESS EASEMENT

This Declaration of Access Easement (this "Access Easement") is executed to be effective this 9th day of December, 2024, by Premier Community Developments, Ltd., an Arizona corporation, 1635 East Layton Drive, Englewood, Colorado 80113-7000 ("Declarant").

A. Declarant recorded a Survey Land Plat on November 19, 2024 at Reception Number 4995251 in the real estate records of Weld County, Colorado which depicts a 30 foot shared access easement over, across, and through a portion of Parcels 3 and 4 as legally described on the attached Exhibit A ("Parcels 3 and 4") in order to provide access to and from County Road 39 (the "Access Easement Area") for the benefit of the owners of said Parcels 3 and 4 and the owners of the two lots legally described in Exhibit B ("Lots A and B") (Parcels 3 and 4 and Lots A and B are sometimes hereinafter collectively referred to as the "Benefitted Property").

B. Declarant is currently the fee simply owner of Parcels 3 and 4 and Lots A and B.

C. The fee simple owners of the Parcels 3 and 4 and Lots A and B, together with such owners' successors and assigns, are sometimes referred to herein individually as an "Owner" and collectively as "Owners".

D. The Access Easement Area is legally described and depicted as Exhibit C.

E. Declarant desires to establish the respective obligations of the Owners with respect to the Access Easement Area as hereinafter set forth.

NOW THEREFORE, in consideration of the recitals stated above, the premises, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Declarant hereby declares and establishes as follows:

WITNESSETH

1. Use of Access Easement Area. Declarant hereby confirms the grant of a perpetual non-exclusive easement on, over, across, through, and upon the Access Easement Area for use by the Owners, and, their respective tenants, authorized invitees, contractors, agents, representatives, employees, successors, and assigns, including all emergency service providers, for vehicular and pedestrian ingress and egress to and from County Road 39.

2. Conditions of Grant of Access Easement. The Owners acknowledge and agree that this Access Easement is subject to the following terms and conditions:

2.1 Non-Interference. Notwithstanding anything to the contrary in Section 1,

the Owners shall not undertake or cause to be undertaken any activity on the Access Easement Area that would materially interfere with any other Owner's use and enjoyment of the Access Easement Area in accordance with this Access Easement or make more costly the ownership and maintenance of the Access Easement Area.

2.2 Compliance with Laws. Any use of the Access Easement Area shall only be in accordance with all applicable laws, ordinances, rules, regulations and requirements of governmental authorities (collectively, "Applicable Laws").

2.3 Non-Obstruction. The Access Easement Area shall be kept open and unobstructed at all times, and nothing shall allow any Owner, or invitee thereof, to erect any type of structure within, plant any type of tree or shrubbery within, impede access within, or otherwise obstruct the Access Easement Area in any manner.

2.4 No Parking. The Access Easement shall not include the right to park any automobiles or other vehicles, whether motorized or non-motorized, on the Access Easement Area, except in connection with the maintenance and repair of the Access Easement Area or facilities located thereon.

2.5 No Trespass. While using the Access Easement, the owners of the Benefitted Property, and their respective guests and invitees, shall stay within the Access Easement Area and shall not trespass onto any adjacent private property.

2.6 AS-IS. The Access Easement shall encompass the Access Easement Area in its "as-is" condition, and the Owners acknowledge that Declarant shall have no obligation to repair, maintain or make any alterations or improvements to the Access Easement Area.

2.7 Maintenance. The respective owner(s) of Lots A and B (i) shall be obligated to jointly maintain in good condition and repair, and in compliance with Applicable Laws the Access Easement Area and any improvement installed thereon, in connection with this Access Easement, and (ii) shall each be responsible for 50% of the cost of all repairs and maintenance, including snow removal, necessary to maintain the surface of the Access Easement Area to effect a passable, gravel surface for the purposes set forth in this instrument.

2.8 No Litter. The Owners shall not litter on the Access Easement Area and shall keep the Access Easement Area free from trash and refuse.

2.9 Right to Support. The owners of Parcels 3 and 4 shall take no action that would impair the earth cover over, or the lateral or subjacent support of, the Access Easement Area.

3. Indemnity and Insurance. Each party shall indemnify, defend, protect and hold harmless the other party and its respective principals, invitees, tenants, employees and contractors from any loss, cost or expense incurred by such indemnified party arising from such indemnifying party's breach of any of its obligations, or exercise of its rights or interests under, this Access Easement. Each party shall maintain and, upon a party's written request, provide evidence of, commercially reasonable liability and casualty insurance in relation to its respective use of, interests in and obligations relating to the easements granted herein.

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4. Enforcement. Enforcement of the provisions of this Access Easement shall be by an appropriate proceeding at law or in equity against any person, corporation or other entity violating or attempting to violate said provisions, either to restrain such violation, to enforce liability or to recover damages. The prevailing party in any such enforcement proceeding shall be awarded its costs and expenses, including reasonable attorneys' fees, incurred in connection therewith. All of the remedies permitted or available to any party under this Access Easement or at law or in equity shall be cumulative and not alternative, and invocation of any such right or remedy shall not constitute a waiver or election of remedies with respect to any other permitted or available right or remedy.

5. Not a Public Dedication. Nothing in this Access Easement shall be deemed to be a gift or dedication of any portion of the Benefitted Property or the Access Easement Area to the general public or for any public purposes whatsoever, it being the intention of Declarant that this Access Easement shall be strictly limited to and for the purposes herein expressed.

6. Failure to Enforce. No delay or omission on the part of any Owner in exercising any rights, power or remedy provided in this Access Easement shall be construed as a waiver of or acquiescence in any breach of the terms and conditions of this Access Easement.

7. Covenant Running with Land. This Access Easement, the restrictions imposed by this Access Easement and the covenants contained in this Access Easement shall be deemed easements, restrictions and covenants running with the land and shall inure to the benefit of the Owners, and be binding upon the Owners, and their respective heirs, personal representatives, successors and assigns. As used in this paragraph, the term "successors and assigns" includes, but is not limited to, mortgagees, beneficiaries of deeds of trust, secured parties under security agreements, and any purchaser upon the foreclosure of any such security interest or in lieu thereof.

8. No Merger. There shall be no merger of the easements or of any rights or obligations created and imposed by this Access Easement solely by reason of the fact that the same person, firm or corporation may hold, own or acquire directly or indirectly the fee simple estate or other lesser estate in both the Benefitted Property and the Access Easement Area. No such merger shall occur unless or until all of the persons, firms and corporations having any such fee simple interest in such parcels shall join in a written instrument effecting such merger and such written instrument is duly recorded among the official records of Weld County, Colorado against such parcels.

9. Miscellaneous.

9.1 Headings. The headings in this Access Easement are for convenience only and do not in any way limit or affect the terms and provisions of this Access Easement.

9.2 Unenforceability. If any provision of this Access Easement is held to be invalid, illegal or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect the remainder of such provision or any other provisions of this Access Easement.

9.3 Governing Law; No Jury Trial. This Access Easement shall be construed and enforced in accordance with the laws of the State of Colorado without regard to its conflicts of laws principles. Declarant, for itself and the Owners, hereby knowingly, intentionally, and voluntarily, with an upon the advice of competent counsel, waives, relinquishes and forever

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forgoes the right to a trial by jury in any action or proceeding based upon, arising out of, or in any way relating to the provisions of this Access Easement.

9.4 Amendment; Modification. This Access Easement may be changed, modified or amended in whole or in part only by a written agreement executed by all Owners of the Benefitted Property and the Access Easement Area and recorded in the official real estate records of Weld County, Colorado.

9.5 Waiver. Any Owner may, at any time or times, at its election, waive any of the conditions to its obligations under this Access Easement, but any such waiver shall be effective only if contained in a writing signed by the waiving party. No waiver shall reduce the rights and remedies of such party by reason of any breach of any other party. No waiver by any party of any breach under this Access Easement shall be deemed a waiver of any other or subsequent breach.

9.6 Exhibits. The exhibits referred to in this Access Easement and attached to this Access Easement are incorporated into this Access Easement as if set forth in this Access Easement in full.

9.7 Term. This Access Easement shall remain in effect until the same is either modified or terminated pursuant to a written agreement executed by all of the then record fee owners of all parts of the Benefitted Property and the Access Easement Area and recorded in the official real estate records of Weld County, Colorado.

[Remainder of page intentionally left blank; signature pages follow]

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IN WITNESS WHEREOF, Declarant has executed this Access Easement to be effective as of the day and year first above written.

Premier Community Developments, Ltd.
An Arizona Corporation

By: Jay B. Scolnick, President

STATE OF COLORADO)
) ss.
COUNTY OF Arapahoe)

The foregoing instrument was acknowledged before me this 9th day of December, 2024, by Jay B. Scolnick, as President of Premier Community Developments, Ltd., an Arizona corporation.

Witness my hand and official seal.

My commission expires:
8.25.2026

Notary Public

BERENICE GONZALEZ PEREZ
NOTARY PUBLIC
STATE OF COLORADO
NOTARY ID 20224033457
MY COMMISSION EXPIRES 08/25/2026

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EXHIBIT A

PARCEL 3:
A PARCEL OF LAND LOCATED IN THE WEST 1/2 OF SECTION 20, TOWNSHIP 2 NORTH, RANGE 65 WEST OF THE 6TH P.M., COUNTY OF WELD, STATE OF COLORADO, DESCRIBED AS FOLLOWS:

CONSIDERING THE EAST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 20 TO BEAR NORTH 00°43'19" WEST, BEING MONUMENTED ON THE NORTH END BY A 3/4" REBAR WITH 2 1/2" ALUMINUM CAP, PLS 23501, AND ON THE SOUTH END BY A 3/4" REBAR WITH 3 1/4" ALUMINUM CAP, PLS 27269, WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO;

BEGINNING AT THE CENTER 1/4 CORNER OF SAID SECTION 20; THENCE NORTH 00°43'19" WEST, COINCIDENT WITH THE EAST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 20, A DISTANCE OF 554.35 FEET; THENCE SOUTH 88°44'35" WEST, A DISTANCE OF 2654.84 FEET TO THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 20; THENCE SOUTH 01°15'38" EAST, COINCIDENT WITH SAID WEST LINE, A DISTANCE OF 249.97 FEET; THENCE NORTH 88°44'35" EAST, A DISTANCE OF 301.00 FEET; THENCE SOUTH 24°34'53" EAST, A DISTANCE OF 490.05 FEET; THENCE NORTH 88°44'35" EAST, A DISTANCE OF 2153.29 FEET TO THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 20; THENCE NORTH 00°44'02" EAST, COINCIDENT WITH SAID EAST LINE, A DISTANCE OF 145.65 FEET TO THE TRUE POINT OF BEGINNING

SAID PARCEL CONTAINS 38.50 ACRES, MORE OR LESS

PARCEL 4:
A PARCEL OF LAND LOCATED IN THE WEST 1/2 OF SECTION 20, TOWNSHIP 2 NORTH, RANGE 65 WEST OF THE 6TH P.M., COUNTY OF WELD, STATE OF COLORADO, DESCRIBED AS FOLLOWS:

CONSIDERING THE EAST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 20 TO BEAR NORTH 00°43'19" WEST, BEING MONUMENTED ON THE NORTH END BY A 3/4" REBAR WITH 2 1/2" ALUMINUM CAP, PLS 23501, AND ON THE SOUTH END BY A 3/4" REBAR WITH 3 1/4" ALUMINUM CAP, PLS 27269, WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO;

COMMENCING AT THE CENTER 1/4 CORNER OF SAID SECTION 20; THENCE SOUTH 00°44'02" EAST, COINCIDENT WITH THE EAST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 20, A DISTANCE OF 145.65 FEET TO THE TRUE POINT OF BEGINNING; THENCE SOUTH 88°44'35" WEST, A DISTANCE OF 2153.29 FEET; THENCE NORTH 24°34'53" WEST, A DISTANCE OF 490.05 FEET; THENCE SOUTH 88°44'35" WEST, A DISTANCE OF 301.00 FEET TO THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 20; THENCE SOUTH 01°15'38" EAST, COINCIDENT WITH SAID WEST LINE, A DISTANCE OF 190.00 FEET TO THE NORTHWEST CORNER OF LOT A, RECORDED EXEMPTION NO. RE-2902, AS SHOWN ON THE PLAT RECORDED MARCH 13, 2001 AS RECEPTION NO. 2831920 IN THE RECORDS OF THE CLERK AND RECORDER FOR WELD COUNTY, COLORADO; THENCE NORTH 88°48'48" EAST, COINCIDENT WITH THE NORTH LINE OF SAID LOT A, A DISTANCE OF 101.77 FEET TO THE NORTHEAST CORNER OF SAID LOT A AND THE BEGINNING OF A CURVE, CONCAVE TO THE NORTHEAST, HAVING A RADIUS OF 1314.76 FEET AND A CENTRAL ANGLE OF 30°01'13", WHOSE CHORD BEARS SOUTH 36°38'15" EAST, A DISTANCE OF 681.02 FEET; THENCE SOUTHEASTERLY ALONG THE ARC OF SAID CURVE AND COINCIDENT WITH THE EAST LINE OF SAID LOT A, A DISTANCE OF 688.87 FEET; THENCE SOUTH 01°18'02" EAST, COINCIDENT WITH THE EAST LINE OF SAID LOT A, A DISTANCE OF 403.70 FEET TO THE SOUTHEAST CORNER OF SAID LOT A; THENCE NORTH 88°44'35" EAST, COINCIDENT WITH THE NORTH LINE OF LOT B, RECORDED EXEMPTION NO. RE-4134, AS SHOWN ON THE PLAT RECORDED AUGUST 12, 2005 AS RECEPTION NO. 3312634, AND THE NORTH LINE OF LOT A AND LOT B, RECORDED EXEMPTION NO. RECX17-0204, AS SHOWN ON THE PLAT RECORDED APRIL 18, 2018 AS RECEPTION NO. 4392098 IN THE RECORDS OF THE CLERK AND RECORDER FOR WELD COUNTY, COLORADO, A DISTANCE OF 2145.54 FEET TO THE NORTHEAST CORNER OF SAID LOT B, RECX17-0204 AND THE EAST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 20; THENCE NORTH 00°44'02" WEST, COINCIDENT WITH SAID EAST LINE, A DISTANCE OF 699.10 FEET TO THE TRUE POINT OF BEGINNING

SAID PARCEL CONTAINS 38.62 ACRES, MORE OR LESS

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EXHIBIT B

Lot A and Lot B, Recorded Exemption No. 1307-20-02 RECX17-0204, recorded April 18, 2018, at Reception No. 4392098**, being located in the West Half of Section 20, Township 2 North, Range 65 West of the 6th P.M., County of Weld, State of Colorado**

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EXHIBIT C

EXHIBIT "C"

A 30-FOOT WIDE PARCEL OF LAND LOCATED IN THE WEST 1/2 OF SECTION 20, TOWNSHIP 2 NORTH, RANGE 65 WEST OF THE 6TH P.M., COUNTY OF WELD, STATE OF COLORADO, LYING 15 FEET ON EACH SIDE OF THE FOLLOWING DESCRIBED CENTERLINE:

CONSIDERING THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 20 TO BEAR NORTH 01°15'38" WEST, BEING MONUMENTED ON THE NORTH END BY A 3/4" REBAR WITH 2" ALUMINUM CAP, PLS 23501, AND ON THE SOUTH END BY A 3/4" REBAR WITH 3 1/4" ALUMINUM CAP, PLS 38512, WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO;

COMMENCING AT THE WEST 1/4 CORNER OF SAID SECTION 20; THENCE NORTH 04°35'31" EAST, A DISTANCE OF 284.22 FEET TO THE EAST RIGHT-OF-WAY LINE OF COUNTY ROAD 39 AND THE TRUE POINT OF BEGINNING; THENCE NORTH 88°44'21" EAST, A DISTANCE OF 37.89 FEET; THENCE SOUTH 15°25'29" EAST, A DISTANCE OF 158.45 FEET TO A POINT LYING 15.00 FEET NORTHEASTERLY FROM THE EAST LINE OF A UNITED POWER EASEMENT AS DESCRIBED IN DOCUMENT RECORDED AUGUST 20, 2024 AS RECEPTION NO. 4977492 IN THE RECORDS OF THE CLERK AND RECORDER FOR WELD COUNTY, COLORADO; THENCE PARALLEL WITH AND 15.00 FEET NORTHEASTERLY FROM THE EAST LINE OF SAID EASEMENT THE FOLLOWING FOUR (4) COURSES AND DISTANCES:

1) SOUTH 28°17'46" EAST, A DISTANCE OF 188.33 FEET;
2) SOUTH 30°29'34" EAST, A DISTANCE OF 183.58 FEET;
3) SOUTH 40°15'01" EAST, A DISTANCE OF 181.13 FEET;
4) SOUTH 46°53'07" EAST, A DISTANCE OF 177.94 FEET TO A POINT LYING 15.00 FEET EAST OF THE EAST LINE OF LOT A, RECORDED EXEMPTION NO. RE-2902, AS SHOWN ON THE PLAT RECORDED MARCH 13, 2001 AS RECEPTION NO. 2831820 IN THE RECORDS OF THE CLERK AND RECORDER FOR WELD COUNTY, COLORADO; THENCE SOUTH 01°18'02" EAST, PARALLEL WITH AND 15.00 FEET EAST OF THE EAST LINE OF SAID LOT A, A DISTANCE OF 347.38 FEET TO A POINT LYING 15.00 FEET NORTH OF THE NORTH LINE OF A PUBLIC SERVICE COMPANY EASEMENT AS DESCRIBED IN DOCUMENT RECORDED DECEMBER 12, 1978 AS RECEPTION NO. 1775539 IN THE RECORDS OF THE CLERK AND RECORDER FOR WELD COUNTY, COLORADO; THENCE NORTH 88°44'35" EAST, PARALLEL WITH AND 15.00 FEET NORTH OF THE NORTH LINE OF SAID EASEMENT, A DISTANCE OF 1475.38 FEET TO A POINT LYING 15.00 FEET WEST OF THE WEST LINE OF SAID UNITED POWER EASEMENT; THENCE SOUTH 02°23'50" WEST, PARALLEL WITH AND 15.00 FEET WEST OF THE WEST LINE OF SAID EASEMENT, A DISTANCE OF 90.18 FEET TO THE NORTH LINE OF LOT A, RECORDED EXEMPTION NO. RECX17-0204, AS SHOWN ON THE PLAT RECORDED APRIL 18, 2018 AS RECEPTION NO. 4392098 IN THE RECORDS OF THE CLERK AND RECORDER FOR WELD COUNTY, COLORADO AND THE POINT OF TERMINUS.

THE SIDE LINES OF SAID 30-FOOT WIDE PARCEL TO BE SHORTENED OR LENGTHENED AS NECESSARY TO PROVIDE A CONTINUOUS 30-FOOT WIDE PARCEL

PREPARED BY: CURTIS D. HOOS, PLS 37971
FOR AND ON BEHALF OF:
AMERICAN WEST LAND SURVEYING CO.
BRIGHTON, CO 80601

COLORADO LICENSED PROFESSIONAL LAND SURVEYOR
37971
11-7-2024

NOTE: THIS DRAWING IS MEANT TO DEPICT THE ATTACHED DESCRIPTION AND IS FOR INFORMATIONAL PURPOSES ONLY. IT DOES NOT REPRESENT A MONUMENTED LAND SURVEY. NOTE: THIS SURVEY DOES NOT CONSTITUTE A TITLE SEARCH BY AMERICAN WEST LAND SURVEYING CO. TO DETERMINE OWNERSHIP, RIGHTS-OF-WAY OR EASEMENTS OF RECORD.

PARCEL NO. 130720200037 PREMIER COMMUNITY DEVELOPMENTS LTD.	DRAWN BY: CDH FIELD: CDH NOV 7, 2024 PAGE 1 OF 4	American West Land Surveying Co. A Colorado Corporation

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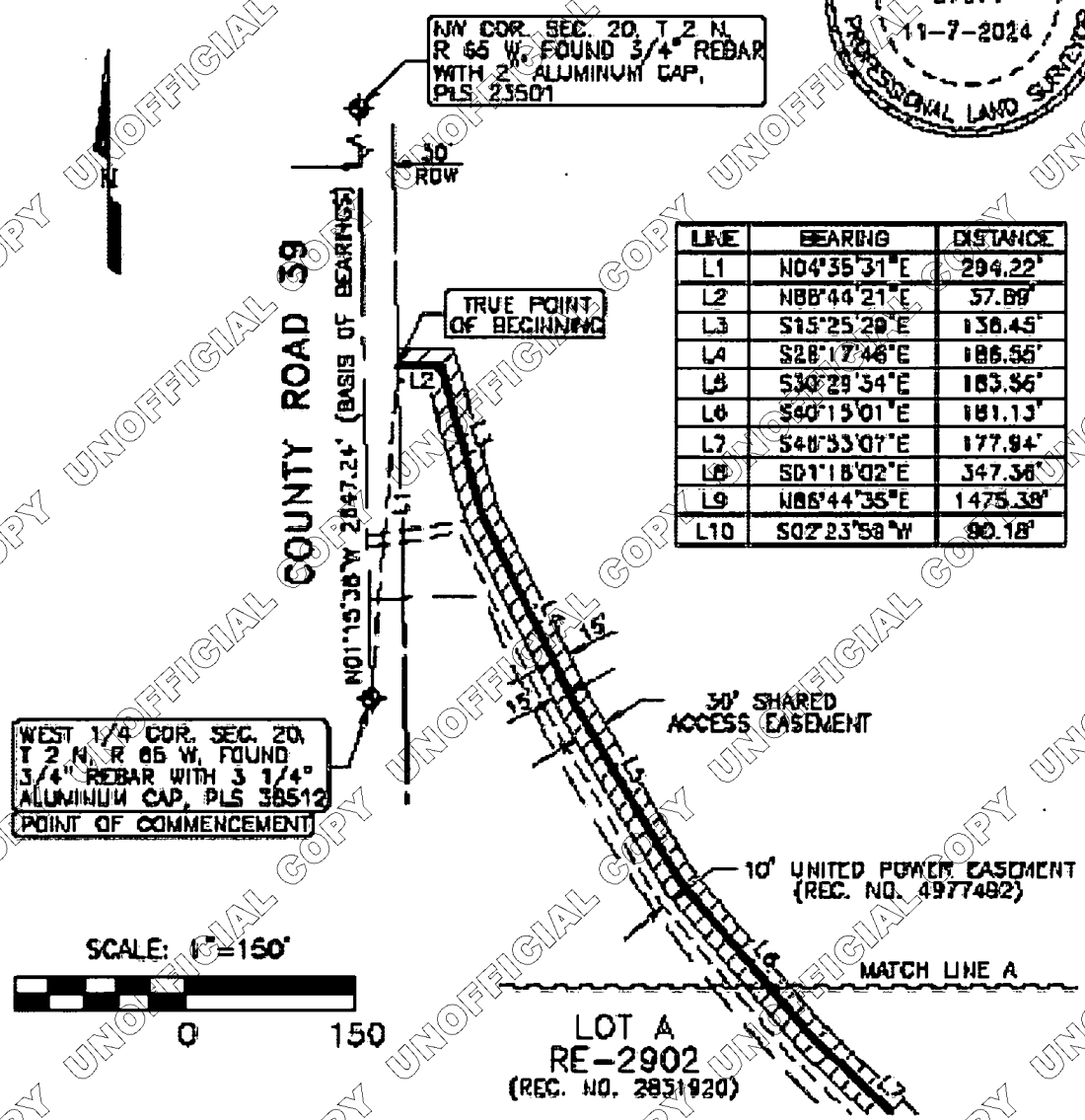
EXHIBIT "C"

COLORADO LICENSED PROFESSIONAL LAND SURVEYOR
37871
11-7-2024



LINE	BEARING	DISTANCE
L1	N04°35'31"E	294.22'
L2	N88°44'21"E	57.89'
L3	S15°25'29"E	138.45'
L4	S28°17'46"E	186.56'
L5	S30°29'34"E	183.56'
L6	S40°15'01"E	181.13'
L7	S40°33'07"E	177.94'
L8	S01°18'02"E	347.36'
L9	N88°44'35"E	1475.38'
L10	S02°23'58"W	90.18'

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PARCEL NO. 130720200037
PREMIER COMMUNITY DEVELOPMENTS LTD.

DRAWN BY: CDH	
FIELD: CDH	
NOV 7, 2024	
PAGE 2 OF 4	

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EXHIBIT "C"

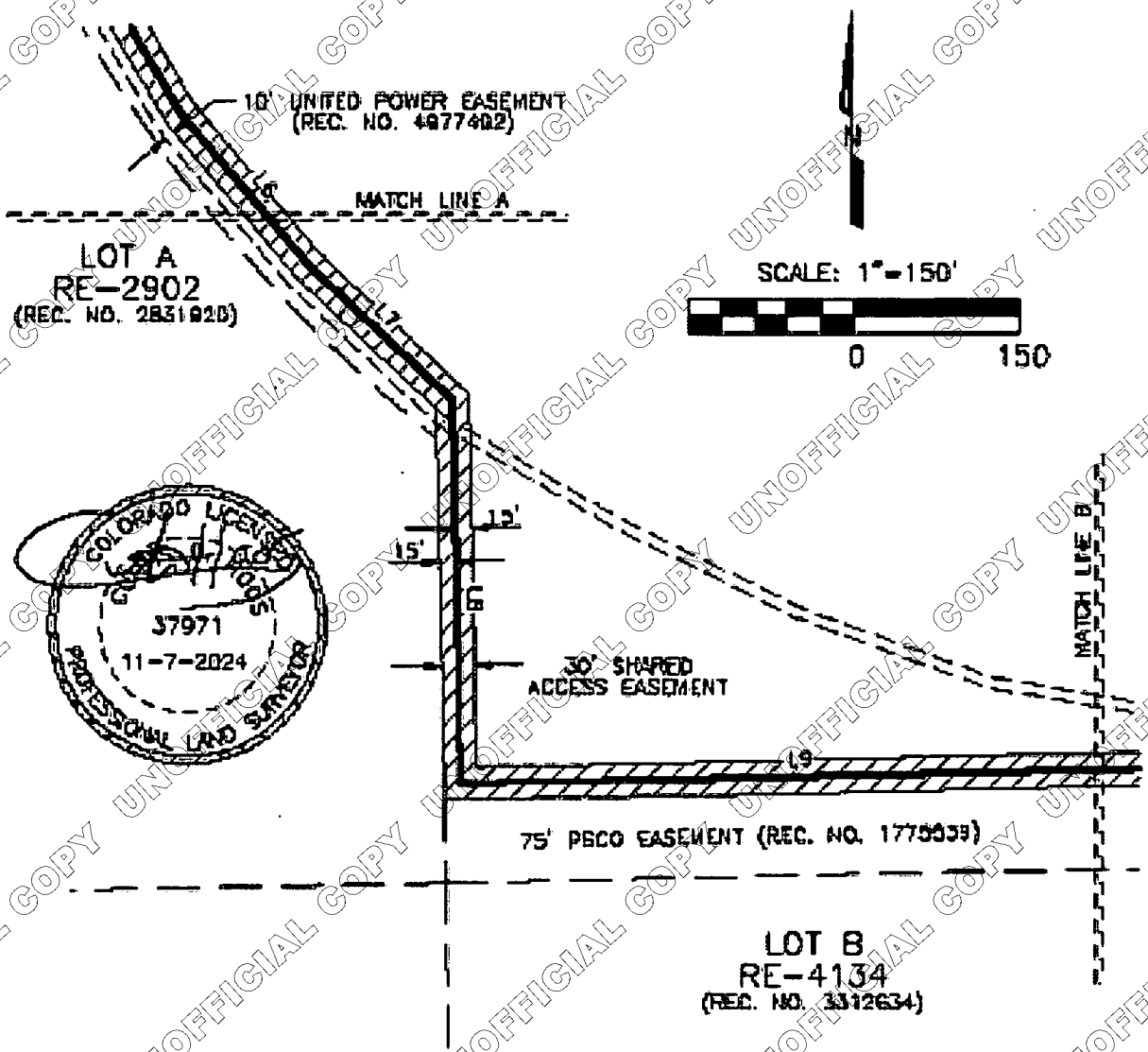

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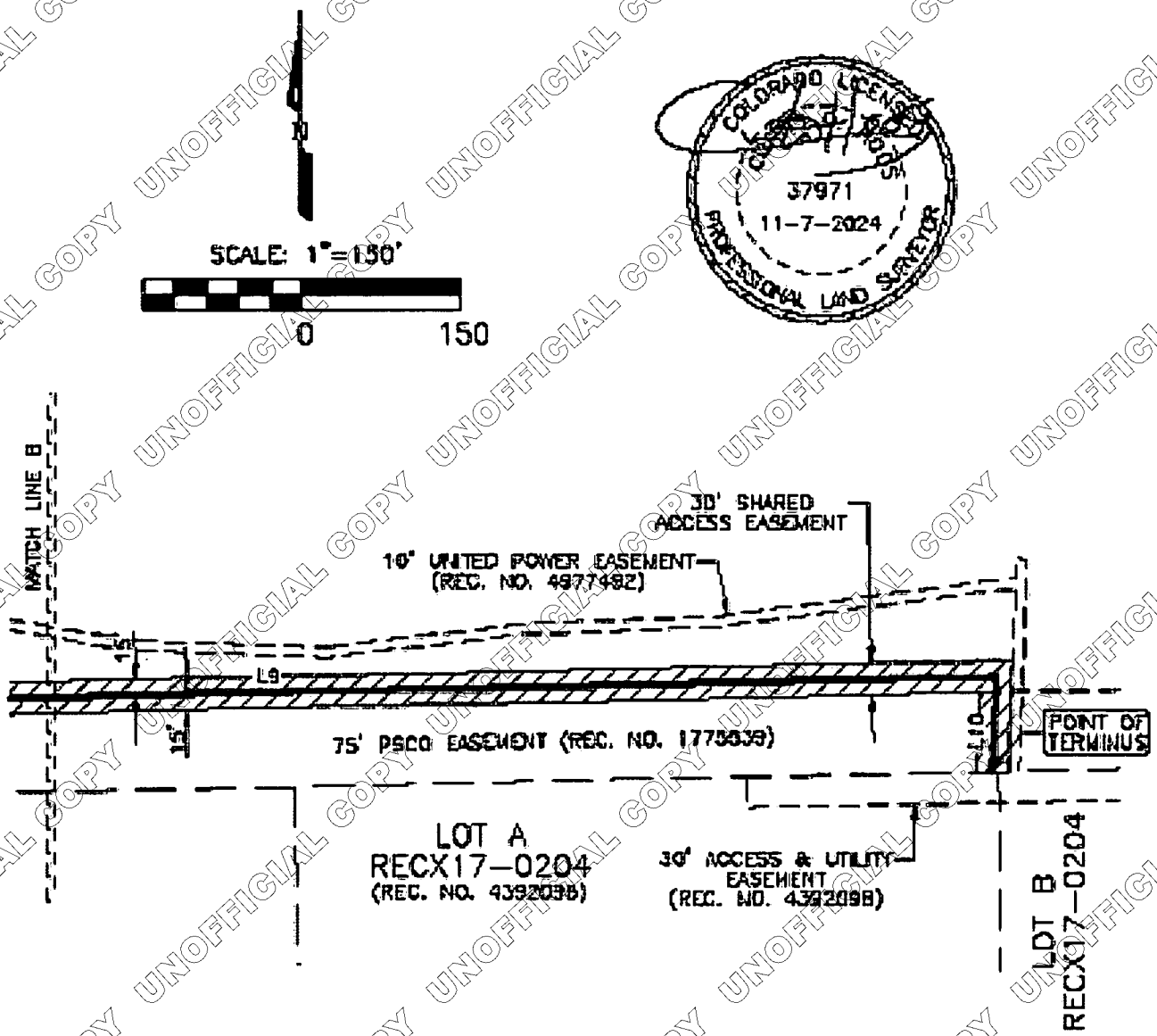
EXHIBIT "C"



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